

CV-25-003433 TORRES, CANDIDO RODRIGUEZ vs STANISLAUS COUNTY – Defendant’s Motion for Summary Judgment – GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: Based on both the parties’ arguments and the Court-raised issue that the notice of rejection was sent after legal rejection was made, the case was filed untimely and the six-month statute of limitations applies. As such, County’s motion is granted. Further the risk management firm had no legal authority even if agreed to by the County to do anything unilaterally other than reject because the 45-day statutory deadline had passed. All objections are OVERRULED. The Court does not consider any legal conclusions reached by the declarants and bases any conclusions on the documents themselves and not on declarants’ interpretations of them. The Request for Judicial Notice is denied as moot, as I believe it is unnecessary in the instant case. (See *Bienville Water Supply Co. v. City of Mobile* (1902) 186 U.S. 212, 217.) In this case, Plaintiff Rodriguez Torres crashed on April 11, 2023, allegedly due to a defect in the road, and he and his wife Plaintiff Rodriguez presented a claim to the County on October 6, 2023. Notices of rejection were mailed by County contractor George Hills on April 3, 2024. Plaintiff filed suit on April 11, 2025. Government Code section 945.6 provides for a six-month statute of limitations after receiving a denial, but a two-year statute from the date of the event if no denial is sent. Government Code section 912.4 holds that the claim was deemed to have been rejected 45 days after its submission when no action was taken. While the county was well past the 45-day limit for their rejection, *Katellaris v. County of Orange* (2001) 92 Cal.App.4th 1211 shortens the time to six months from the time of rejection even under these circumstances. Tardy notice of rejection only delays the start of the six-month clock. Plaintiffs argue that because the board or an authorized employee did not send the rejection letter, it is of no import. But in fact the rejection letter complies with statutory notice; even though the outside contractor apparently believed it was rejecting the claim at that point, the claim had already been rejected by operation of law. The contractor’s notice is likely sufficient in any event. Even assuming the County did no investigation and did nothing, the notice requirement is designed to provide Plaintiffs with the specific information on when the time for filing the suit would expire. This notice did so, and the contractor had both apparent and actual authority to send the letter. Plaintiffs were on notice of the requirements to sue within six months of the rejection, and did not do so. Such a failure is jurisdictional and the motion must be granted. The Court does not reach the sufficiency of the evidence presented by the County to show compliance with (apparent) statutory requirements that it be the County, not a contractor, who considers whether to accept or reject claims. If it did, it would conclude that the evidence submitted by the County is sufficient to overcome any presumption that it did not.

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Further the risk management firm had no legal authority even if agreed to by the County to do anything unilaterally other than reject because the 45-day statutory deadline had passed.

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In this case, Plaintiff Rodriguez Torres crashed on April 11, 2023, allegedly due to a defect in the road, and he and his wife Plaintiff Rodriguez presented a claim to the County on October 6, 2023. Notices of rejection were mailed by County contractor George Hills on April 3, 2024. Plaintiff filed suit on April 11, 2025.

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Plaintiffs argue that because the board or an authorized employee did not send the rejection letter, it is of no import. But in fact the rejection letter complies with statutory notice; even though the outside contractor apparently believed it was rejecting the claim at that point, the claim had already been rejected by operation of law.

The contractor's notice is likely sufficient in any event. Even assuming the County did no investigation and did nothing, the notice requirement is designed to provide Plaintiffs with the specific information on when the time for filing the suit would expire.

This notice did so, and the contractor had both apparent and actual authority to send the letter. Plaintiffs were on notice of the requirements to sue within six months of the rejection, and did not do so. Such a failure is jurisdictional and the motion must be granted.

The Court does not reach the sufficiency of the evidence presented by the County to show compliance with (apparent) statutory requirements that it be the County, not a contractor, who considers whether to accept or reject claims. If it did, it would conclude that the evidence submitted by the County is sufficient to overcome any presumption that it did not.